

ELIZABETH II



1970 CHAPTER xiv

An Act to make further provision for the finances and local government of the administrative county of Leicestershire; and for other purposes.

[15th May 1970]

WHEREAS—

(1) It is expedient that further and better provision should be made with reference to lands and the finances and local government of the administrative county of Leicestershire and that the powers of the county council of the said county and of the mayor, aldermen and burgesses of the borough of Loughborough should be enlarged and extended as provided in this Act:

(2) It is expedient that the other provisions contained in this Act should be enacted:

(3) The purposes of this Act cannot be effected without the authority of Parliament:

1933 c. 51.

(4) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title.

1. This Act may be cited as the Leicestershire County Council Act 1970.

Division of Act into Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Lands.

Part III.—Finance and superannuation.

Part IV.—Miscellaneous.

Part V.—General.

Interpretation.

3.—(1) In this Act, unless otherwise expressly enacted or unless the subject or context otherwise requires, the following expressions have the meanings hereby respectively assigned to them:—

1936 c. 49.

“ the Act of 1933 ” means the Local Government Act 1933;

1961 c. 62.

“ the Act of 1936 ” means the Public Health Act 1936;

“ the Act of 1961 ” means the Trustee Investments Act 1961;

“ the borough ” means the borough of Loughborough;

“ the Corporation ” means the mayor, aldermen and burgesses of the borough;

“ the Council ” means the county council of the county;

“ the county ” means the administrative county of Leicestershire;

“ county fund ” means the county fund of the Council;

“ district ” means a borough or an urban or rural district in the county;

“ enactment ” includes an enactment in a local or private Act of Parliament and a provision of an order, scheme, regulation or other instrument made under or confirmed by a public general, local or private Act of Parliament;

“ financial year ” means a period of twelve months ending on 31st March;

PART I
—cont.

“ functions ” includes powers and duties;

“ land ” includes land covered by water and any interest or right in, over or under land;

“ local authority ” means the council of a district;

“ the Minister ” means the Minister of Housing and Local Government;

“ Minister of the Crown ” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act 1946;

1946 c. 31.

“ owner ” in relation to any premises means a person, other than a mortgagee not in possession, who, whether in his own right or as trustee or agent for any other person, is entitled to receive the rack rent of the premises or, where the premises are not let at a rack rent, would be so entitled if the premises were so let;

“ premises ” includes land and buildings;

“ statutory undertakers ” means persons authorised by any enactment to carry on any of the following undertakings, that is to say—

(a) a railway, tramway, road transport, water transport, canal, inland navigation, dock, harbour, pier or lighthouse undertaking; or

(b) an undertaking for the supply of electricity, gas, water or hydraulic power;

“ superannuation fund ” means the superannuation fund maintained by the Council under Part I of the Local Government Superannuation Act 1937.

1937 c. 68.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment, including this Act.

PART II

LANDS

4.—(1) The Council by means of an order made by the Council and submitted to and confirmed by the confirming authority may be authorised to create in favour of the Council in or over any land which under any enactment the Council may be authorised to acquire compulsorily any easement or other right in or over or in relation to such land which, in the opinion of the confirming authority, is essential to the full enjoyment or use of any land or building owned or occupied, or intended to be acquired or occupied, by the Council for the purposes of any of their undertakings, powers or duties. Compulsory acquisition of easements.

PART II
—cont.

(2) The confirming authority shall not confirm any order under this section unless the confirming authority determine that the easement or right can be created without material detriment to the land in or over or in relation to which it is proposed to be created or, in the case of a park or garden belonging to a house, without seriously affecting the amenity or convenience of the house.

1946 c. 49.

(3) The Acquisition of Land (Authorisation Procedure) Act 1946 shall apply as if this section were an enactment contained in a public general Act and in force immediately before the commencement of the said Act of 1946, and as if—

(a) the expression “compulsory purchase of land” in the said Act of 1946 included the creation of such easement or right as is mentioned in subsection (1) of this section; and

(b) paragraphs 9 and 10 of Schedule 1 to the said Act of 1946 applied to the creation of such easement or right as is mentioned in the said subsection (1), whether it is created in, over or under any land to which either of those paragraphs relates, or in, over or under any other land in which the person entitled to the benefit of the paragraph has an easement or other right which, if it were land, would be land to which the paragraph relates.

1965 c. 56.

(4) No such easement or right as is mentioned in subsection (1) of this section shall be deemed part of a house, building or manufactory, or of a park or garden belonging to a house within section 8 of the Compulsory Purchase Act 1965.

(5) In this section the expression “confirming authority” means the authority having power to authorise the purchase compulsorily of the land for the enjoyment or use of which the easement or other right is required or which would have had such power if such land were not already owned by the Council.

Undertakings
and
agreements
binding
successive
owners.

5.—(1) Every undertaking given by or to the Council to or by the owner of a legal estate in land and every agreement made between the Council and any such owner being an undertaking or agreement—

(a) given or made under seal either on the passing of plans or otherwise in connection with the land; and

(b) expressed to be given or made in pursuance of this section;

shall be binding not only upon the Council and any owner joining in the undertaking or agreement, but also upon the successors in title of any owner so joining and any person claiming through or under them.

(2) Such an undertaking or agreement shall be treated as a local land charge for the purposes of the Land Charges Act 1925, as amended by the Law of Property (Amendment) Act 1926.

PART II
—cont.
1925 c. 22.
1926 c. 11.

(3) Any person upon whom any such undertaking or agreement is binding shall be entitled to require from the Council a copy thereof.

6.—(1) The Council and any person having an estate or interest in any land within the county may enter into an agreement which may provide for all or any of the following:—

Agreements
with
developers.

- (a) determining the order in which development of that land shall be carried out as between the different parts of that land and as between the different parts of the development of any part of that land;
- (b) determining the time by which development of that land shall be completed or the times by which the parts of that development shall be completed;
- (c) ensuring that the estate or interest of that person in that land shall not be conveyed, leased or assigned except by way of mortgage or legal charge to any person unless the Council shall have first satisfied themselves that that person has, or can command, sufficient financial resources to carry out development of that land and to implement all the provisions of the agreement;
- (d) the dedication to the public of rights of way over that land or over a part or parts of any building or structure which is comprised in the development and the maintenance and cleansing of the public rights of way so dedicated, including the maintenance and cleansing of the surface and the lighting of the building or structure over or above the public rights of way so dedicated and the maintenance of any support of the public rights of way so dedicated;
- (e) arrangements relating to the provision, maintenance or use of facilities for the parking of vehicles for or in connection with development of that land;
- (f) arrangements for the maintenance of open spaces provided in connection with development of that land;
- (g) arrangements relating to the provision, maintenance or use of means of disposal of foul or surface water for or in connection with development of that land;
- (h) any other related or consequential matters.

(2) (a) An agreement entered into under the preceding subsection may contain positive and negative covenants and whether they be positive or negative and notwithstanding that they may

PART II
—cont.

not enure, and may not be expressed to enure, for the benefit of any other land of the covenantee they shall, if registered in the Local Land Charges Register, be enforceable by the Council against the covenantor and all persons deriving title by, through or under the covenantor.

(b) In the event of the person who has entered into an agreement under the preceding subsection or any person deriving title by, through or under him failing to perform any of the positive covenants contained in the agreement the Council may, after giving not less than twenty-one days' notice of their intention so to do, enter on the land and do the work in default, and the expenses incurred by the Council in so doing shall be recoverable by them from the person in default.

(c) Except as may be expressly provided in the agreement an agreement entered into under the preceding subsection shall be enforceable and be deemed to be intended to be enforceable in perpetuity or for the duration of the estate or interest which the person entering into the agreement has in the land at the time when the agreement is entered into.

(3) The Council may take or acquire shares or other securities in any company incorporated in the United Kingdom with which an agreement is entered into under this section.

1962 c. 38.

(4) In this section "development" has the same meaning as in section 12 of the Town and Country Planning Act 1962.

(5) Section 291 of the Act of 1936 shall have effect as if reference therein to that Act included a reference to this section.

PART III

FINANCE AND SUPERANNUATION

Power to
borrow.

7.—(1) The Council may borrow—

- (a) such sums as may be necessary for any of the purposes of this Act;
- (b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act;

and, subject to the provisions of this section, Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Council shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

(3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section,

except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946.

PART III
—cont.
1946 c. 58.

8.—(1) Any method by which the Council are empowered by any enactment to raise any money which they are authorised to borrow shall, notwithstanding anything in such enactment, be deemed to include the raising of money by that method outside the United Kingdom or in any foreign currency.

Power to
raise money
abroad.

(2) The powers conferred by the foregoing subsection shall not be exercised except with the consent of the Treasury, and subject to such conditions as the Treasury may impose.

(3) The enactments empowering the Council to raise money shall have effect in relation to a transaction authorised by this section for the raising of money in a foreign currency as if for any reference in those enactments to sterling there were substituted a reference to the foreign currency and for any reference therein to a sum expressed in terms of sterling there were substituted a reference to the sum expressed in terms of the foreign currency (adjusted, where necessary, to produce an amount which the Council consider appropriate having regard to all the circumstances of the transaction).

(4) Nothing in this section shall be taken as exempting the Council from the provisions of any order under section 1 of the Borrowing (Control and Guarantees) Act 1946.

9. In addition to any other method by which the Council may raise any money which they are authorised to borrow, they may, with the consent of the Treasury and subject to such conditions as the Treasury may impose, raise money by means of the issue of bearer bonds or other securities to bearer.

Power to
raise money
by bearer
bonds.

10. In addition to the modes of borrowing prescribed by the Act of 1933, the Council may raise money—

Power to
raise money
by bills.

(1) for any purpose for which the Council are authorised to borrow;

(2) in anticipation of the receipt of revenues for any purpose for which the revenues of the Council may properly be applied;

by means of bills (to be called “Leicestershire County Council bills”, in this section referred to collectively as “bills” and separately as a “bill”), subject to, and in accordance with, the following provisions:—

(a) A bill shall be in the form prescribed by regulations made under this section and shall be for the payment of the sum named therein in the manner and at the date therein

PART III
—cont.

mentioned, being a date not more than twelve months from the date of the bill:

- (b) A bill shall entitle the holder thereof to payment at maturity of the sum expressed in the bill to be payable:
- (c) Bills may be offered for purchase (whether by tender or otherwise) in such manner and on such conditions as the Council may determine:
- (d) Bills shall be issued under the authority of a resolution passed by the Council, and shall bear the signature of the treasurer of the Council or of some other person authorised by the Council:
- (e) The Council may make regulations providing for—
 - (i) the preparation, form, mode of issue, payment and cancellation of bills;
 - (ii) the issue of new bills in lieu of bills defaced, lost or destroyed;
 - (iii) the prevention, by the use of counterfoils or of a special description of paper or otherwise, of fraud in relation to bills; and
 - (iv) the giving of a proper discharge on the payment of a bill:
- (f) The amount of money received in respect of a bill shall be deemed to be principal money raised by means of the bill and the difference between the amount payable in respect of a bill and the amount received in respect thereof shall be deemed to be interest on the principal money so raised:
- (g) The aggregate amount payable on bills current at any one time shall not (except by the amount payable on bills issued shortly before any other bills fall due in order to pay off the last-mentioned bills) exceed—
 - (i) the sum of two million pounds; or
 - (ii) one-fifth of the amount estimated to be produced by the levying of rates in the county during the then current financial year to meet liabilities falling to be discharged by the Council;whichever is the greater:
- (h) Subject to the provisions of the last preceding paragraph, the Council may renew a bill at maturity:
- (i) The Council may borrow for the purpose of repaying the principal money raised by bills, but except as aforesaid any power of the Council to borrow shall be suspended to the extent of the amount which has been raised for capital purposes by the issue of bills.

11.—(1) The Council may establish a fund to be called “ the insurance fund ” with a view to providing a sum of money which shall be available for making good all such losses, damages, costs and expenses as may from time to time be specified in a resolution of the Council (in this section referred to as “ the specified risks ”).

PART III
—cont.

General
insurance
fund.

(2) The establishment of an insurance fund under this section shall not prevent the Council from insuring in one or more insurance office against the whole or any part of all or any of the specified risks.

(3) In each financial year after the establishment of the insurance fund the Council shall pay into that fund either—

- (a) such a sum as shall in their opinion be not less than the aggregate amount of the premiums which would be payable if the Council fully insured in some insurance office of good repute against the specified risks; or
- (b) if the Council insure in some insurance office against the whole or part of all or any of the specified risks such sum as will, together with the premiums paid for the last-mentioned insurance, be not less than the aggregate amount aforesaid.

(4) When the insurance fund shall amount to the prescribed amount (as hereinafter defined) the Council may (if they think fit) discontinue the yearly payments to the fund but if the insurance fund is at any time reduced below the prescribed amount the Council shall recommence and continue the yearly payments to the fund in accordance with subsection (3) of this section until the fund be restored to the prescribed amount and if at any time the Council reduce the prescribed amount so that there are more moneys in the insurance fund than the sum so prescribed, such moneys shall be transferred to the county fund, and, may be apportioned in the accounts of the Council between the several undertakings, departments or services liable to contribute to the insurance fund in such shares or proportions as the Council consider equitable.

(5) The Council shall provide the yearly payments aforesaid by contributions from the revenue moneys of the county fund and shall show the same in their accounts under the separate heading or division in respect of the particular undertaking, department or service of the Council which if the specified risks were insured against in an insurance office would be properly chargeable with the payment of the premium of such insurance.

(6) (a) Except so far as the insurance fund and the proceeds of sale of securities in which the fund is invested may be necessary to meet losses, damages, costs and expenses in respect of the specified risks, all moneys for the time being standing in the credit of the fund shall (unless applied in any other manner

PART III
—cont.

authorised by any enactment) be invested in statutory securities, and the interest and other annual proceeds received by the Council in respect of such investments shall be carried to the county fund.

(b) In addition to the sum required to be paid into the insurance fund by subsection (3) of this section the Council shall in every financial year, so long as the fund is less than the prescribed amount, carry to the credit of that fund out of the revenue moneys of the county fund an amount equal to the interest and other annual proceeds carried to the county fund in pursuance of the last foregoing paragraph.

(c) If and so long as the insurance fund amounts to the prescribed amount the interest and other annual proceeds received by the Council in respect of or on investments forming part of the insurance fund and carried to the county fund may be apportioned in the accounts of the Council between the several undertakings, departments or services liable to contribute to the insurance fund in such shares or proportions as may be equitable.

(7) For the purposes of this section the Council may, if they deem it expedient, include, in the specified risks, risks of accident to any teacher, caretaker or other person employed in any voluntary school in the county.

(8) (a) The insurance fund shall be applied to meet any losses, damages, costs or expenses sustained by the Council in respect of the specified risks in the order of the dates on which such losses, damages, costs or expenses become ascertained, and if at any time and from time to time the insurance fund shall be insufficient to make good any such losses, damages, costs or expenses, the Council may, with the sanction of the Minister, borrow at interest under and subject to the provisions of Part IX of the Act of 1933 such sums of money as will be necessary to make up the deficiency.

(b) The amounts of the annual charges in respect of interest on and repayment of principal of any sums so borrowed and the amounts of any such deficiencies as aforesaid not made up by borrowing shall be paid out of the county fund and charged in the accounts of the Council under the separate headings or divisions in respect of such undertakings, departments or services of the Council, and in such proportions as the Council may determine having regard to the risks through which such deficiencies arise.

(9) Any covenant or obligation binding on the Council to insure against any risk shall (except in so far as the terms of such covenant or obligation otherwise specifically provide) be deemed to be satisfied by a resolution of the Council under subsection (1) of this section and that risk shall be one of the specified risks:

(10) In the event of the insurance fund ceasing to be required to meet losses, damages, costs and expenses in respect of the specified risks, the insurance fund may be carried to and form part of any

capital fund established by the Council under section 1 of the Local Government (Miscellaneous Provisions) Act 1953, or (if the Council so determine) shall be applied in such other manner as the Minister may approve towards the discharge of any debt of the Council or otherwise for any purpose for which capital money may properly be applied.

PART III
—*cont.*
1953 c. 56.

(11) In this section—

“insurance office” means—

- (i) an insurance company; or
- (ii) an underwriter being a member of an association of underwriters;

“prescribed amount” means such sum as may from time to time be prescribed by the Council; and

“statutory securities” means any securities in which trustees are for the time being authorised by law to invest trust moneys or in which the Council are authorised to invest moneys forming part of the superannuation fund.

12.—(1) The Council may enter into a contract with any person whereby, in consideration of payments made by way of premium or otherwise by the Council, that person undertakes to pay to the Council such sums as may be provided in the contract in the event of any voluntary assistant or visiting pupil meeting with a personal accident, whether fatal or not, while he is engaged as such, or suffering any disease or sickness, whether fatal or not, as a result of being so engaged.

Insurance of
certain
voluntary
assistants
and visiting
pupils.

(2) Any sum received by the Council under any such contract shall, after deduction of any expenses incurred in the recovery thereof, be paid by the Council to, or to the personal representatives of, the voluntary assistant or visiting pupil who suffered the accident, disease or sickness in respect of which the sum is received.

(3) The provisions of the Life Assurance Act 1774 shall not apply to any such contract, but any such contract shall be deemed for the purposes of the Insurance Companies Act 1958 to be a policy of insurance upon the happening of personal accidents, disease or sickness.

1774 c. 48.

1958 c. 72.

(4) In this section—

“industrial building” has the meaning assigned thereto by section 21 of the Local Employment Act 1960 as amended by section 25 of the Industrial Development Act 1966;

1960 c. 18.
1966 c. 34.

“visiting pupil” means a pupil who attends a school maintained by the Council or an institution as described in section 1 of the Education (No. 2) Act 1968 and who

1968 c. 37.

PART III
—cont.

for the time being is under arrangements made by the Council for the purpose of his education engaged on visiting or working at an industrial building;

“voluntary assistant” means a person who, at the request of the Council or an authorised officer of the Council, performs any service or does anything, otherwise than for profit or reward, for the purposes of, or in connection with, the carrying out of any of the functions of the Council.

Power to
Council to
lend money
to local
authorities,
etc.

13.—(1) The Council may lend to any local authority, and a local authority may borrow from the Council, upon such terms and conditions as may be agreed, such money as the Council think fit to lend and as the local authority are authorised to borrow for the purpose for which such money is proposed to be borrowed, and any money so lent shall be repaid to the Council by the local authority within the period prescribed by the sanctioning authority or otherwise for the repayment by the local authority of the money they are authorised to borrow.

(2) Any sum borrowed by the Council for the purpose of this section shall be repaid within a period to expire not more than one year after that for which the same was lent by them to the local authority.

(3) Where any sum is borrowed by the Council for the purposes of this section it shall be lawful for the Council for such periods as they may think fit to suspend any annual provision required to be made by virtue of any enactment for the time being in force for the repayment of the sum borrowed.

(4) The Council shall be entitled to charge such rate of interest in respect of any particular loan under this section as may be agreed between the Council and the borrower:

Provided that the Council shall ensure so far as it is reasonably practicable to do so that having regard to all the circumstances existing at the time the loan is made the rate of interest agreed is such that no loss is incurred by the Council in respect of the loan.

(5) All costs, charges and expenses incurred by the Council in respect of any particular loan under this section shall be met by the borrower.

(6) In this section the expression “local authority” means the Council of a borough, urban or rural district or parish in the county or the Leicester and Rutland Police Authority.

Expenses of
public
entertainment.

14.—(1) The Council may make reasonable payments for or in connection with—

(a) refreshments for members or representatives of the Council, local authorities or other bodies or for other

persons attending conferences or meetings convened by the Council; and

PART III
—cont.

(b) the arrangement and conduct of ceremonies relative to or arising out of the statutory functions of the Council.

(2) Section 1 (Payment of expenses of official and courtesy visits, etc.) of the Local Authorities (Expenses) Act 1956 shall in relation to the Council have effect as if in paragraph (b) thereof after the words “distinguished persons” there were inserted the words “residing in or”.

15.—(1) In its application to the investment by the Council under subsection (3) of section 21 of the Local Government Superannuation Act 1937 of any moneys forming part of, but not for the time being required to meet payments out of, the superannuation fund, the Act of 1961 shall have effect as if—

Extension
of power to
invest
superannua-
tion fund
moneys.

(a) in Part II (Narrower-Range Investments Requiring Advice) of Schedule 1 to that Act—

(i) for paragraphs 3 and 4 thereof there were substituted the following paragraphs:—

“3. In fixed-interest securities issued by any public, municipal or local authority, or any publicly controlled or nationalised industry or undertaking, whether established within or outside the United Kingdom.

4. In fixed-interest securities issued by the government of any territory outside the United Kingdom.”;

(ii) for paragraph 6 thereof there were substituted the following paragraph:—

“6. In debentures issued by a company incorporated in the United Kingdom or established under the law of any territory outside the United Kingdom.”;

(iii) in paragraph 9 thereof, the words “in the United Kingdom”, where first occurring, were omitted and the following sub-paragraph were added at the end of that paragraph:—

“(g) any public, municipal or local authority established outside the United Kingdom.”;

(b) in Part III (Wider-Range Investments) of the said Schedule—

(i) in paragraph 1 for the words “and not being securities falling within Part II of this Schedule” there were substituted the words “or in any securities issued by a company established under the law of any territory outside the United Kingdom, and not being in either case securities falling within Part II of this Schedule”;

PART III
—cont.

(ii) in paragraph 3 there were added the words “or in any units or other shares of a property unit trust”;

(iii) the following paragraphs were included:—

“4. In the purchase, whether alone or jointly or in common with any other person, of immovable property of any tenure or kind in the United Kingdom, the Isle of Man or the Channel Islands, or of any share or interest in such immovable property, including any interest in such immovable property comprised in a building agreement providing for the grant of a lease of such property contingent on the erection or completion of the building specified in such agreement.

5. In the advance of money upon the security of—

(i) immovable property of any tenure or kind in the United Kingdom, the Isle of Man or the Channel Islands; or

(ii) any legal estate or interest in immovable property comprised in a building agreement as specified in paragraph 4 of this Part;

and in any such case whether the security be taken by a separate and distinct mortgage or security made exclusively to the Council or by a mortgage or security made jointly to the Council and any other person.

6. In undertaking or financing whether alone or jointly with any other person—

(i) the erection of a new building or the improvement or extension of an existing building; or

(ii) building operations or other development; on land belonging to the Council or to any other person or on land which is, or will be, held jointly by the Council and any other person.

7. Upon the security of freehold or leasehold ground rents, land charges or rentcharges.”;

(c) in Part IV (Supplemental) of the said Schedule—

(i) paragraphs 1 and 3 were omitted;

(ii) for paragraph 2 there were substituted the following paragraph:—

“2.—(a) Not more than one-tenth of the value of all the investments made at any one time in the manner specified in paragraph 1 of Part III of this Schedule shall be represented by securities the price

of which is not quoted on a recognised stock exchange or quoted on a recognised security market;

PART III
—cont.

(b) For the purpose of this paragraph the value of any investment shall be deemed to be the value of the investment at the time at which it was made.”;

(iii) in paragraph 4 after the definition of “ordinary deposits” and “special investment” there were inserted the following definitions:—

“quoted on a recognised security market” in its application to securities not registered in the United Kingdom means that the security has been granted an official quotation or is listed on a recognised security market or that dealing prices on such a market in respect of that security are published not less frequently than once a week;

“recognised stock exchange” in its application to the United Kingdom means any body of persons which is for the time being a recognised stock exchange for the purposes of the Prevention of Fraud (Investments) Act 1958 or the Belfast Stock Exchange; 1958 c. 45.

“recognised security market” in its application to securities not registered in the United Kingdom means a stock exchange, an association of stock and share dealers or an over-the-counter market recognised as a market or association in which dealings in the country concerned normally take place.

(2) (a) No moneys referred to in subsection (1) of this section invested in the manner specified in paragraphs 4 and 6 of the said Part III as amended by this section shall equal or exceed one-quarter of the total value of the wider-range part of the superannuation fund.

(b) For the purposes of this subsection, the value of any investment belonging to the superannuation fund shall be deemed to be the value of the investment at the time at which it was made.

(c) In this section “wider-range part” in relation to the superannuation fund has the same meaning as it has for the purposes of the Act of 1961.

16.—(1) In this section “narrower-range part” and “wider-range part” in relation to the superannuation fund have the same meanings as they have for the purposes of the Act of 1961.

Modification
of provisions
as to
division of
superannua-
tion fund.

PART III
—cont.

(2) Notwithstanding the division of the superannuation fund made in pursuance of subsection (1) of section 2 of the Act of 1961, the superannuation fund may be again divided so that, at the time of the latter division, the value of the wider-range part bears to the then value of the narrower-range part the proportion of three to one; and such proportion is in the Act of 1961, as modified by subsection (3) of this section, referred to as “the prescribed proportion”.

(3) For the purposes of any division of the superannuation fund in accordance with subsection (2) of this section, the Act of 1961 shall have effect in relation to the superannuation fund subject to the following modifications:—

- (a) in subsection (1) of section 2, for the words “equal in value” there shall be substituted the words “in the prescribed proportion”;
- (b) in paragraph (b) of subsection (3) of section 2, and in sub-paragraph (b) of paragraph 3 of Schedule 2, for the words from “each” to the end of that paragraph and sub-paragraph there shall be substituted the words “the wider-range part of the fund is increased by an amount which bears the prescribed proportion to the amount by which the value of the narrower-range part of the fund is increased”;
- (c) in subsection (3) of section 4, for the words from “so as either” to “each other” there shall be substituted the words “so as to bear to each other either the prescribed proportion or”;
- (d) section 13 shall not apply in relation to the superannuation fund.

Expenses of investment of superannuation fund.

17. All costs, charges and expenses incurred by the Council in investing moneys forming part of the superannuation fund or otherwise in relation thereto may be paid by the Council out of the said fund.

Saving for Exchange Control Act 1947.
1947 c. 14.

18. Nothing in this Act shall be taken as exempting the Council from the provisions of the Exchange Control Act 1947.

Application to Corporation of provisions of Part III.

19.—(1) The provisions of this Part of this Act mentioned in subsection (2) of this section shall apply to the Corporation and for that purpose those provisions shall have effect as if for references to the Council and to the superannuation fund there were substituted respectively references to the Corporation and to the superannuation fund maintained by the Corporation under Part I of the Local Government Superannuation Act 1937 and subject to any other necessary modifications.

1937 c. 68.

(2) The provisions referred to in subsection (1) of this section are—

PART III
—cont.

Section 15 (Extension of power to invest superannuation fund moneys);

Section 16 (Modification of provisions as to division of superannuation fund);

Section 17 (Expenses of investment of superannuation fund).

PART IV

MISCELLANEOUS

20.—(1) The Council may for the purpose of enabling them to perform any of their functions under—

Power to
require
information as
to ownership
of premises.

(a) any enactment in force at the passing of this Act which authorises the Council to acquire land compulsorily;

(b) any enactment mentioned in Part I of Schedule 1 to this Act; and

(c) this Act;

require—

(i) the occupier and any person having an interest in any premises in the county and any person who either directly or indirectly receives rent in respect of such premises to state in writing the nature of his own interest therein and the name and address of any other person known to him as having an interest in those premises whether as freeholder, mortgagee, lessee or otherwise or the name and address of any person known to him to receive either directly or indirectly the rent in respect of those premises; and

(ii) any person who has sold or otherwise disposed of, leased or let any premises in the county to state in writing the name and address of the person to whom he has sold or otherwise disposed of, leased or let those premises.

(2) Any person who having been required by the Council in pursuance of this section to give to them any information fails to give that information or knowingly makes any misstatement in respect thereof shall be liable to a fine not exceeding twenty pounds.

(3) For the purposes of this section the expression “interest” includes any legal estate or interest in the premises or in any rent-charge issuing out of those premises.

(4) The provisions of any of the enactments referred to in subsection (1) of this section which contain power to require information as to the ownership of premises shall cease to apply to the Council in so far as they relate to the same subject-matter as this section.

PART IV
—cont.

Micro-
filming of
plans and
documents.
1962 c. 38.

21.—(1) In this section—

“ building ” includes part of a building;

“ development ” has the same meaning as in the Town and Country Planning Act 1962;

“ document ” means the whole or part of a register, book, map, plan (not being a plan to which subsection (2) of this section applies), record or other document and includes a notice, licence, certificate, scheme or order made, passed or granted by the Council or any committee of the Council;

“ microfilm recording ” means a reproduction on film which is a product of photography or any process akin to photography, and is in general beyond legibility with the naked eye;

“ plan ” includes any section, specification and written particulars which have been deposited with or submitted to the Council with the plan, and an application made to the Council for planning permission under the said Act of 1962.

(2) (a) The Council may make and retain a microfilm recording of any plan to which this subsection applies where—

(i) more than five years have elapsed since the date on which the plan was deposited with or submitted to the Council; and

(ii) all significant features of the plan can be accurately reproduced in the form of a microfilm recording notwithstanding the use on the plan of one or more colours.

(b) This subsection applies to any plan relating to—

(i) the construction, alteration or extension of a building; or

(ii) the execution of any works or the installation of any fittings in connection with a building; or

(iii) the making of a change in the purposes for which a building is used; or

(iv) the carrying out of development of land; or

(v) the laying out of a new street;

which has been deposited with or submitted to the Council by virtue of a requirement imposed by any enactment.

(3) The Council may make and retain microfilm recordings of documents of the Council.

(4) Notwithstanding anything contained in any enactment, the Council may destroy or otherwise dispose of any plan or any document of the Council (other than minute books) of which they have made and retained microfilm recordings:

Provided that—

PART IV
—cont.

(a) the Council shall not under this section destroy records deposited with them under the Public Records Act 1958 or acquired or accepted by them under section 2 of the Local Government (Records) Act 1962;

1958 c. 51.

1962 c. 56.

(b) the Council shall afford a right of access for the public to a microfilm recording of a plan or document which has been destroyed in pursuance of this section equal to the right of access, if any, of the public to the plan or document so destroyed;

(c) nothing in this section shall prejudice or affect the rights of the public to have access to any plan or document of the Council of which a microfilm recording has been made and which has not been destroyed or otherwise disposed of.

(5) An enlargement of a microfilm recording of a plan or document made in pursuance of this section shall be deemed for all purposes to be a copy of that plan or document.

(6) Notwithstanding anything contained in any enactment or any rule of law an enlargement of a microfilm recording of a plan or document which has been destroyed or otherwise disposed of in pursuance of this section shall be receivable in evidence for any purpose for which the document would have been receivable in any proceedings in any court in England or Wales if the clerk to the Council certifies that—

(a) the plan or document has been destroyed or otherwise disposed of; and

(b) a microfilm recording of the plan or document has been made; and

(c) the enlargement is an enlargement of that microfilm recording.

22.—(1) A committee lawfully authorised by the Council to exercise any powers of the Council under any enactment may, subject to any direction of the Council, appoint such sub-committees consisting either wholly or partly of members of the committee as the committee think fit, and subject as aforesaid may delegate with or without restrictions or conditions any of their functions to a sub-committee so appointed.

Delegation
of powers
to sub-
committees.

(2) A sub-committee appointed under this section (other than a sub-committee of a committee for regulating and controlling the finance of the Council or of the county) may include persons who are not members of the Council:

Provided that—

(a) a majority of the members of any such sub-committee shall be members of the Council; and

PART IV
—cont.

(b) whenever at any meeting of any such sub-committee the members present thereat do not include a majority of members of the Council any decision of the sub-committee shall have no effect unless it is confirmed by the committee.

(3) Nothing in this section shall authorise the appointment of a sub-committee for any purpose for which any committee of the Council are authorised to appoint a sub-committee under any other enactment.

Supply of
goods by
Council to
other
authorities.

23.—(1) The Council may purchase and store and supply to an authority any goods or materials required for the discharge of the functions of that authority, and for those purposes the Council and any authority may enter into and carry into effect agreements and do all such other acts as may be necessary or convenient:

Provided that the Council shall not, in pursuance of this section, supply to an authority for the purpose of the erection, alteration or extension or repair and maintenance of houses or other buildings by that authority, building materials other than materials purchased from a person bona fide carrying on business as a builders' merchant.

(2) In this section "authority" means a local authority or a joint committee appointed by two or more local authorities, the council of an administrative county, the council of a county borough, the council of a county district, a police authority, a river authority, statutory undertakers or other body of persons discharging functions in pursuance of any enactment, any voluntary organisation in receipt of a grant lawfully made by the Council within twelve months of the exercise by the Council of the powers of this section and the council of any university.

Provision of
reciprocal
services, etc.,
by Council
and other
bodies.

24.—(1) For the better performance of their respective powers or duties, provision may be made by agreement in the case of the Council between the Council on the one hand and any local authority or a joint committee appointed by two or more local authorities or any of the authorities and bodies specified in subsection (4) of this section on the other or in the case of a local authority between the local authority on the one hand and the Council, another local authority or a joint committee appointed by two or more local authorities or any of the authorities so specified on the other, for the taking by either party thereto of action of the following kinds:—

(a) the undertaking by one party for another of any administrative, clerical, professional or technical services;

(b) the use or maintenance by one party of any vehicle, plant, equipment or apparatus of another party and, if it appears convenient, the services of any staff employed in connection therewith;

(c) the carrying out of works of maintenance by one party in connection with land or buildings for the maintenance of which the other is responsible.

(2) Where provision could be made either by an agreement under this section or by virtue of the powers conferred by section 271 of the Act of 1936 it shall be made under the said section 271 and not under this section.

(3) In its application to the use of any mechanical road-making equipment or plant the provisions of subsection (1) of this section shall extend to enable the Council or a local authority to let for hire such equipment or plant to any authority to whom this section applies or any person carrying out work for, or on behalf of, the Council or a local authority.

(4) The authorities and bodies hereinbefore referred to are the council of any administrative county other than the Council, the council of a county borough, the council of any county district other than a local authority, a police authority, a river authority and statutory undertakers or other body of persons discharging functions in pursuance of any enactment and in the application of subsection (1) of this section to the Council include any voluntary organisation in receipt of a grant lawfully made by the Council within twelve months of the exercise by the Council of the powers of that subsection and the council of any university.

25. Section 23 (Supply of goods by Council to other authorities) and section 24 (Provision of reciprocal services, etc., by Council and other bodies) of this Act shall cease to have effect on the passing during the present session of Parliament of any general Act which makes provision with respect to the supply of goods and services by local authorities to certain public bodies.

26. The Council may provide services and facilities for the processing of data by computer or any other electronic or mechanical data processing equipment which the Council may possess for any authority, body or person and the Council may make such charges as may be agreed for the provision of those services and facilities.

27.—(1) The provisions of this Part of this Act and the Schedule mentioned in subsection (2) of this section shall apply to the Corporation and for that purpose those provisions shall have effect as if for references to the Council and to the county there were substituted references to the Corporation and to the borough respectively and subject to any other necessary modifications.

Application
to
Corporation
of provisions
of Part IV.

Electronic
or
mechanical
equipment.

PART IV
—cont.

(2) The provisions hereinbefore referred to are—

Section 20 (Power to require information as to ownership of premises);

Section 22 (Delegation of powers to sub-committees);

Section 23 (Supply of goods by Council to other authorities);

Section 25 (Saving for general Act);

Section 26 (Electronic or mechanical equipment);

Schedule 1.

(3) The said section 20 in its application to the Corporation shall have effect as if in paragraph (b) of subsection (1) the words and figures “Parts I and II” were substituted for the word and figure “Part I”.

PART V

GENERAL

Restriction
on right to
prosecute.

28. Proceedings in respect of an offence created by or under any provision of this Act shall not without the written consent of the Attorney-General be taken by any person other than a party aggrieved or the Council or the Corporation (as the case may be).

Protection of
members and
officers from
personal
liability.
1875 c. 55.

29. Section 265 of the Public Health Act 1875 shall apply to the Council and the Corporation as if any reference in that section to the said Act of 1875 included a reference to this Act, and as if references in that section to a member of a local authority included reference to a member of a committee or a sub-committee of the Council or of the council of the borough of Loughborough.

Crown
rights.

30. Nothing in this Act affects prejudicially any estate, right, power, privilege or exemption of the Crown and in particular and without prejudice to the generality of the foregoing nothing in this Act authorises the Council or any local authority to take, use or in any manner interfere with any land or hereditaments or any rights of whatsoever description—

(a) belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those Commissioners on behalf of Her Majesty first had and obtained for that purpose; or

(b) belonging to a government department or held in trust for Her Majesty for the purposes of a government department without the consent in writing of that government department.

Application
of general
provisions of
Act of 1936.

31.—(1) The sections of the Act of 1936 mentioned in Part I of Schedule 2 to this Act shall have effect as if references therein to that Act included references to this Act.

(2) The section of the Act of 1936 mentioned in Part II of the said schedule shall have effect as if references therein to that Act included a reference to section 20 (Power to require information as to ownership of premises) of this Act.

PART V
—cont.

(3) The section of the Act of 1936 mentioned in Part III of the said schedule shall have effect as if references therein to that Act included a reference to section 26 (Electronic or mechanical equipment) of this Act.

32. The costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Council out of the county fund or out of moneys to be borrowed under this Act. Costs of Act.

SCHEDULES

Sections 20
and 27.

SCHEDULE 1

PART I

1930 c. 44. Land Drainage Act 1930.
Act of 1936.
1950 c. 28. Shops Act 1950.
1961 c. 48. Land Drainage Act 1961.

PART II

1937 c. 40. Public Health (Drainage of Trade Premises) Act 1937.
1957 c. 56. Housing Act 1957.
1961 c. 64. Public Health Act 1961.
1964 c. 56. Housing Act 1964.

SCHEDULE 2

Section 31.

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PART II

SECTION APPLIED TO SECTION 20 OF THIS ACT

Section	Marginal Note
296	Summary proceedings for offences.

PART III

SECTION APPLIED TO SECTION 26 OF THIS ACT

Section	Marginal Note
271	Interpretation of "provide".



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CHAPTER xiv

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2. Division of Act into Parts.
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5. Undertakings and agreements binding successive owners.
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11. General insurance fund.
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14. Expenses of public entertainment.
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16. Modification of provisions as to division of superannuation fund.
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18. Saving for Exchange Control Act 1947.
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PART IV

MISCELLANEOUS

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21. Microfilming of plans and documents.
22. Delegation of powers to sub-committees.
23. Supply of goods by Council to other authorities.
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25. Saving for general Act.
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Part II—Section applied to section 20 of this Act.

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